

Warsaw, April 23, 2024

Decision

DOKE.561.19.2023

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2023, item 775, as amended) in connection with Article 7(1) and (2) and Article 60 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws 2019, item 1781) and based on Article 57(1)(a) and (h), Article 58(2)(b) in connection with Article 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of May 4, 2016, p. 1, with amendments published in Official Journal of the EU L 127 of May 23, 2018, p. 2, and in Official Journal of the EU L 74 of March 4, 2021, p. 35), hereinafter referred to as the "Regulation 2016/679", after conducting an ex officio administrative proceeding regarding the imposition of an administrative monetary penalty on Ms. M. J., conducting business under the name P. in L. at ul. (...), the President of the Personal Data Protection Office issues a reprimand to Ms. M. J., conducting business under the name P. in L. at ul. (...), for violating the provisions of Article 58(1)(a) and (e) of Regulation 2016/679, consisting of failing to provide the President of the Personal Data Protection Office access to personal data and information necessary to perform his tasks in the proceeding with reference number DS.523.4408.2022.

JUSTIFICATION

Factual Background

A complaint was submitted to the Personal Data Protection Office by Mr. J. D., residing in L. (hereinafter referred to as the "Complainant"), regarding irregularities in the processing of his personal data by Ms. M. J., conducting business in L. at ul. (...) (hereinafter referred to as the "Entrepreneur"), consisting of the failure to fulfill the Complainant's request under Article 15(1) and (3) of the GDPR and the lack of providing the Complainant with information about the actions taken in connection with the indicated request (Article 12(3) of the GDPR). In connection with the above, the President of the Personal Data Protection Office (hereinafter also referred to as the "President of UODO") initiated explanatory proceedings with reference number DS.523.4408.2022.

As part of the aforementioned administrative proceedings – in a letter dated September 20, 2022 – the President of UODO addressed the Entrepreneur, requesting a response (within 7 days from the date of delivery of the aforementioned letter) to the content of the complaint and to provide explanations by answering detailed questions regarding the matter, namely:

- a) "Do you process the Complainant's personal data, and if so, on what legal basis, for what purpose, and to what extent;
- b) Has the Complainant approached you to fulfill the informational obligation carried out at the request mentioned in Article 15(1) of the GDPR, including indicating the source of the obtained data and the recipients to whom the Complainant's personal data has been disclosed, and if so, how was the aforementioned obligation fulfilled (including to what extent) or for what reasons and on what legal basis was it refused – additionally, please send the correspondence conducted in this matter with the Complainant, especially the submitted requests and provided responses.
- c) Has the Complainant approached you for the provision of a copy of personal data – Article 15(3) of the GDPR, and if so, how was the aforementioned obligation fulfilled (including to what extent) or on what legal basis was it refused (please also send a copy of the correspondence in this regard) – in the case of providing a copy of personal data, please indicate whether the Complainant was provided with copies of all his personal data processed by you."

This request was directed to the address indicated by the Complainant for the Entrepreneur's business activity, i.e., L. ul. (...), which is listed in the Central Register and Information on Economic Activity (hereinafter referred to as "CEIDG") as the address of an additional permanent place of business activity. The correspondence containing the request, after two unsuccessful notifications, was returned

to UODO on October 20, 2022, with the annotation "RETURNED, not collected in time." This letter was considered duly delivered to the Entrepreneur, in accordance with the provisions of Article 44 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2024, item 572, consolidated text), hereinafter referred to as "k.p.a.", by means of substitute delivery.

In connection with the above, the President of UODO again – in a letter dated October 24, 2022 – requested the Entrepreneur to provide explanations. This letter was addressed to the address of the permanent place of business activity disclosed in CEIDG, i.e., ul. (...) in L., and was not collected by him. The correspondence, after two unsuccessful notifications, was returned on November 22, 2022, to UODO with the annotation "RETURNED, not collected in time," and was subsequently considered duly delivered to the Entrepreneur, in accordance with Article 44 of the k.p.a.

On February 10, 2023, the President of UODO directed to Entrepreneurs, at the address of the additional permanent place of business, received a summons to provide explanations, which was received on February 15, 2023 – as indicated by the annotation on the delivery confirmation – by Ms. B.S. (a collaborator). This letter remained unanswered by the Entrepreneur.

In a letter dated May 18, 2023, the President of the Personal Data Protection Office (UODO) again requested the Entrepreneur to provide explanations. The letter, sent to the address of the additional permanent place of business, was not collected and, after two notifications, was returned to UODO on June 15, 2023, with the annotation "RETURNED, not collected in time," and it should be considered duly delivered to the Entrepreneur in accordance with the provisions of Article 44 of the Code of Administrative Procedure (Kpa).

Both summonses dated February 10, 2023, and May 18, 2023, directed to the Entrepreneur contained a notice indicating that failure to provide explanations in the matter would constitute a violation of the obligation to cooperate with the supervisory authority, which is the President of UODO, resulting in the imposition of an administrative monetary penalty on the Entrepreneur in accordance with Article 83(5)(e) of Regulation 2016/679.

The above circumstances of the factual state were established by the President of UODO based on the entirety of the official correspondence conducted between the Entrepreneur and the President of UODO during the proceedings under case number DS.523.4408.2022, which were transferred to the case with reference number DOKE.561.19.2023. This correspondence fully and exhaustively documents all attempts by the President of UODO to gain access to personal data and information necessary to carry out his tasks – that is, to consider the aforementioned complaint case.

Proceedings

Due to the failure of the Entrepreneur to provide the information necessary to resolve the case DS.523.4408.2022, the President of UODO initiated ex officio – based on Article 83(5)(e) of Regulation 2016/679 – these administrative proceedings, case number DOKE.561.19.2023, regarding the imposition of an administrative monetary penalty on the Entrepreneur, in connection with the violation of Article 58(1)(a) and (e) of Regulation 2016/679. The Entrepreneur was informed of the initiation of the proceedings by a letter dated October 11, 2023 (case number DOKE.561.19.2023), delivered to the Entrepreneur on October 17, 2023.

In this letter, the Entrepreneur was also obliged – in order to determine the basis for the penalty, based on Article 101a(1) of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781, hereinafter referred to as "u.o.d.o.") – to provide information on the amount of turnover and financial result achieved by him in 2022. Furthermore, the Entrepreneur was informed that the submission of comprehensive explanations, which the President of UODO had previously requested in the proceedings under case number DS.523.4408.2022, could mitigate the amount of the administrative monetary penalty imposed in these administrative proceedings or lead to the decision to refrain from imposing it.

In response to the information about the initiation of proceedings by the President of UODO regarding

the imposition of an administrative monetary penalty, the Entrepreneur – in a letter dated October 18, 2023 – submitted explanations that allowed for the further conduct of the complaint proceedings under case number DS.523.4408.2022. Regarding the violation of Article 58(1)(a) and (e) of Regulation 2016/679, the Entrepreneur requested a decision to refrain from imposing an administrative monetary penalty. He explained that he did not evade the obligation to provide the President of UODO with the information necessary to carry out his tasks and that the failure to collect the correspondence was not due to bad intentions – it was caused by the difficult family and health situation of the Entrepreneur.

Additionally, the Entrepreneur clarified that Ms. B.S., who received the letter dated February 10, 2023 (point 4 of the justification), is not his collaborator, does not have authorization to collect correspondence directed to the Entrepreneur, and did not pass this letter on to him. In the explanations provided, the Entrepreneur also declared his willingness to cooperate with the President of UODO.

After reviewing all the evidence gathered in the case, the President of the Personal Data Protection Office considered the following.

Legal Provisions

According to Article 57(1)(a) of Regulation 2016/679, the President of UODO, as the supervisory authority within the meaning of Article 51 of Regulation 2016/679, monitors and enforces the application of this regulation on its territory. Within the scope of its competencies, the President of UODO, among other things, considers complaints lodged by the data subject or by an entity, organization, or association in accordance with Article 80, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable time (Article 57(1)(f) of Regulation 2016/679). The President of UODO also conducts proceedings regarding the application of this regulation, including based on information received from another supervisory authority or another public authority (Article 57(1)(h) of Regulation 2016/679).

To enable the realization of the tasks defined in this manner, the President of UODO has a number of powers specified in Article 58(1) of Regulation 2016/679 concerning the conducted proceedings, including the power to order the controller and the processor to provide all information necessary to carry out his tasks (Article 58(1)(a) of Regulation 2016/679) and the power to obtain from the controller and the processor access to all data.

personal data and all information necessary for the execution of its tasks (Article 58(1)(e) of Regulation 2016/679).

Violation of the provisions of Regulation 2016/679, resulting in a breach of the powers of the authority specified in Article 58(1), is subject to an administrative fine of up to EUR 20,000,000, or in the case of an enterprise, up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applicable, in accordance with Article 83(5)(e) of Regulation 2016/679.

The President of the UODO also has a number of corrective powers specified in Article 58(2) of Regulation 2016/679, including the right to issue a reprimand to the controller or processor in the event of a breach of the provisions of Regulation 2016/679 through processing operations. According to Recital 148 of Regulation 2016/679, in order for the enforcement of the provisions of Regulation 2016/679 to be more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or instead of appropriate measures imposed under Regulation 2016/679 by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a reprimand. However, attention should be paid to the nature, gravity, and duration of the violation, whether the violation was not intentional, the actions taken by the controller to minimize damage, the degree of responsibility or any relevant previous violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the controller or processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

Pursuant to Article 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781), hereinafter referred to as "u.o.d.o.", proceedings regarding violations of personal data protection regulations are conducted by the President of the UODO. Furthermore, Article 7(1) of the u.o.d.o. states that in matters not regulated by this Act, the provisions of the Code of Administrative

Procedure (k.p.a.) apply to administrative proceedings before the President of the UODO (including proceedings regarding the imposition of administrative fines referred to in Chapter 11 of the u.o.d.o.). According to Article 7(2) of the u.o.d.o., these proceedings are single-instance proceedings.

Legal Assessment

Relating the above-mentioned legal basis to the established factual state in this case, it should be recognized that the Entrepreneur - being a party to the proceedings with reference number DS.523.4408.2022 - by failing to respond to the President of the UODO's requests for explanations violated the obligation to ensure the President of the UODO access to personal data and information necessary for the execution of his tasks, which obligations arise directly from Article 58(1)(a) and (e) of Regulation 2019/679. The President called upon the Entrepreneur four times to provide explanations in the case with reference number DS.523.4408.2022, namely by letters dated: September 22, 2022, October 24, 2022, February 10, 2023, and May 18, 2023. The lack of response from the Entrepreneur to this correspondence, undisputed in light of the evidence gathered in this case, resulted in the necessity to initiate administrative proceedings regarding the imposition of an administrative fine on the Entrepreneur.

In the opinion of the President of the UODO, the justification presented by the Entrepreneur in the letter dated October 18, 2023, for the lack of response to his requests (see point 9 of the justification of this decision), although credible, does not constitute a ground for excluding the Entrepreneur's liability for the established violation. At the same time, however, taking into account the explanations of the Entrepreneur, the President of the UODO took the position that the violation established in this case was not intentional but resulted from the personal situation of the Entrepreneur. Furthermore, it should be emphasized that this violation was rectified by the Entrepreneur immediately after being informed about the ongoing proceedings regarding the imposition of an administrative fine, namely upon the submission of the Entrepreneur's explanations to the UODO on October 20, 2023. By providing explanations, the Entrepreneur demonstrated an active attitude and willingness to cooperate further. In light of the above, the President of the UODO deemed it justified to issue a reprimand to the Entrepreneur regarding the established violation of Article 58(1)(a) and (e) of Regulation 2016/679, while also accepting that in light of the criteria specified in Article 83(2) of Regulation 2016/679, it would be effective and sufficient. However, it should be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of the UODO against the Entrepreneur will be taken into account when assessing the grounds for imposing an administrative penalty, in accordance with the principles set out in Article 83(2) of Regulation 2016/679.

In this factual and legal state, the President decided as stated in the operative part of this decision.

Instruction

The decision is final. The Party has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 – 193 Warsaw). The fee for the complaint is PLN 200. In proceedings before the Provincial Administrative Court, the Party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the Party's request submitted before the initiation of the proceedings or during the proceedings. The application is free of court fees.

Print article

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